



Board of Zoning Appeals, March 26th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=u82CDtXJeug
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Delaware-Muncie Metropolitan Board of Zoning Appeals <U+2014> Meeting Summary Report

Meeting Date: March 26, 2026

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the regular monthly meeting of the Delaware-Muncie Metropolitan Board of Zoning Appeals to order at [00:00:05](#).
- **Attendance:**
 - *Members Present:* Matt Billington, Delaney Fri, John Hamilton, Christy Knapp, Leslie Matthew (Quorum established with 5 members present).
 - *Members Absent:* Richard Ivy, Sue Kaiser.
 - *New Member Administration:* John Hamilton was formally introduced and administered the oath of office ([00:00:48](#)).

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Kylan ([00:00:16](#)).

- **Housekeeping & Announcements:**

- Presiding officer reviewed meeting procedures, noting that official action requires at least four affirmative or negative votes from the seven-member board. Cases lacking four votes are automatically continued to the next meeting (00:02:42).
 - **Withdrawn Case:** BZA Case BZA08-26 (filed by Timothy S. and Tamara S. Collins) was formally announced as withdrawn by the applicants and was not heard (00:04:56).
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3. Substantive Business & Board Action

00:05:23 BZA04-26: McDonald's / Pegasus Future 2 LLC Sign Variance

- **Sponsor / Presenter:** Bill Stanall (civil engineering representative).
- **Deliberation Summary:** The applicant requested a variance to allow a 45-foot tall pole sign for a new restaurant on a corridor road at the southeast corner of Macedonia Avenue and 29th Street. Prior to the hearing, the applicant submitted a revised plan reducing the requested sign height from 45 feet to 20 feet (with a 3x6-foot electronic messaging board) to maintain visibility behind an existing billboard.
- **Item-Specific Public Input:**
 - 00:09:33 Stephen Brand (Delaware County Commissioner) spoke in favor of the revised sign.
 - 00:09:48 Stephen Hines spoke in favor with conditions that the approval be restricted to the applicant only and not transfer with ownership.
- **Action & Vote Disposition:** Motion to approve the 20-foot tall sign failed by roll call vote (3 Yes: Billington, Hamilton, Matthew; 2 No: Fri, Knapp). *Disposition:* **Continued to the April 30 meeting** due to lack of four required votes.

00:12:19 BZA05-26: Game of Homes LLC Use & Setback Variance

- **Sponsor / Presenter:** None present representing the applicant.
- **Deliberation Summary:** Application requested a use variance to allow two dwellings in a single-family residence zone and a reduced rear setback at 10006 West Wayne Street. Because no representative appeared at the prior meeting or this meeting (despite prior email confirmation from Cameron Sarah naming Jacob Hansen as representative), the board initially voted by voice vote to table the item to the end of the agenda (00:15:33). When no representative appeared at the end of the agenda, a motion to reject was entertained.
- **Action & Vote Disposition:** Motion to reject passed unanimously by roll call vote (5 Yes: Knapp, Rich/Fri, Hamilton, Billington, Matthew). *Disposition:* **Denied.**

00:16:29 BZA07-26: Domin Davis Group Home Use & Parking Variance

- **Sponsor / Presenter:** Domin Davis.
- **Deliberation Summary:** Applicant requested a use variance to allow group housing for up to four adults with intellectual disabilities in a single-family residence zone and to allow stacked parking at 1904 East 22nd Street. The applicant clarified that staffing involves one person per shift (24-hour coverage), residents do not drive, and visits are infrequent. Staff noted building commissioner approval with no objections.
- **Item-Specific Public Input:**
 - 00:24:46 Mark Moru spoke in favor, sharing positive personal experience living near a neighborhood group home.
 - 00:26:15 Rebecca Meadows spoke in opposition, citing safety concerns for children, parking/stacked parking issues, and property values.
 - 00:27:47 Tony Garcia spoke regarding property values and monitoring.
 - 00:30:32 Jeff Green (City Council member) spoke in opposition, citing child safety and 22nd Street parking constraints.
 - 00:31:32 Angela Meadows spoke in opposition, citing child safety, traffic congestion, and property values.
 - Written opposition emails from Amanda Garner, Amy Woody, and Christian Meadows were entered into the record by staff, emphasizing neighborhood compatibility, traffic, and safety.
- **Action & Vote Disposition:** Motion to approve with conditions that tenant capacity be limited to three adults (based on bedroom sizes) and that the applicant work with the city building commissioner to ensure code compliance. Approved by roll call vote (4 Yes: Fri, Knapp, Billington, Matthew; 1 No: Hamilton). *Disposition:* **Approved (4-1).**

00:40:40 BZA09-26: Heather D. Jones Hen & Garage Setback Variance

- **Sponsor / Presenter:** Heather D. Jones.
- **Deliberation Summary:** Applicant requested variances to allow up to 15 hens (no roosters) and a zero rear/side setback for an existing 50-year-old garage at 608 West County Road 600 South (Monroe Township). Staff clarified that any portion of the structure encroaching into the county right-of-way falls under the purview of the County Commissioners.
- **Item-Specific Public Input:**
 - 00:45:52 Steven Brand (County Commissioner) spoke in favor of the hens and noted he would approve the zero setback when it reaches the commissioners' desk.
- **Action & Vote Disposition:** Motion to approve with conditions limiting the approval to hens only (no roosters) and restricting the variance to the applicant only (non-transferable). Approved unanimously by roll call vote (5 Yes: Hamilton, Knapp, Fri, Matthew, Billington). *Disposition:* **Approved Unanimously.**

00:48:08 BZA 10-26: Flower Bin Inc. / Small Sliders Restaurant Variances

- **Sponsor / Presenter:** Bill Terry (Y Engineers) and Justin Reeds (franchisee).
- **Deliberation Summary:** Applicants requested variances for a new restaurant at 211 West McGalliard Road to allow: no designated loading/unloading area, a metal building facade rather than natural materials, reduced foundation plantings on the east side, and a reduced front green belt (to accommodate a pedestrian sidewalk). Board members expressed concern regarding the corrugated metal facade clashing with surrounding corridor standards.
- **Action & Vote Disposition:** Motion to approve with the condition that the applicant continue working with staff to submit an approved site plan and seek additional variances failed by roll call vote (3 Yes: Knapp, Billington, Fri; 2 No: Matthew, Hamilton). *Disposition:* **Continued to the April 30 meeting** due to lack of four required votes.

00:55:14 BZA 12-26: Chris Hyatt Pole Barn Height Variance

- **Sponsor / Presenter:** Chris Hyatt and Cole Miller (Morton Buildings).
- **Deliberation Summary:** Applicant requested a height variance of 6 feet (23 feet total height rather than the permitted 17 feet) for a new pole barn/accessory building at 2812 West Burgewood Drive to accommodate a 14-foot overhead door for an RV. The applicant noted planting 50 evergreen screening trees along the Tillison right-of-way.
- **Item-Specific Public Input:**
 - 00:59:56 Cole Miller (Morton Buildings) spoke in favor regarding commercial-grade construction quality.
 - 00:01:52 Steven Brand (County Commissioner) spoke in favor, citing the applicant's property upkeep.
 - 00:01:28 Mark Moru (neighbor) spoke in favor, noting neighborhood compatibility and the applicant's helpfulness.
 - 00:07:57 Robert J. Kester spoke in opposition, citing excessive height (nearly twice the house ridge), lack of prior neighborhood outreach, scale, and potential negative impact on property values.
 - 00:15:22 Jill Galer spoke in opposition, expressing concern over industrial aesthetic scale, neighborhood desirability, and economic obsolescence.
 - A supporting email from neighbor Amanda Cohen was entered into the record.
- **Action & Vote Disposition:** Motion to approve with the condition that the building be for personal storage only failed by roll call vote (3 Yes: Billington, Hamilton, Fri; 2 No: Rich/Fri, Knapp, Matthew). *Disposition:* **Continued to the April 30 meeting** due to lack of four required votes.

01:26:53 BZA 13-26: Troy A. and Jerry B. Tucker Accessory Structure & Height Variance

- **Sponsor / Presenter:** Troy A. Tucker.

- **Deliberation Summary:** Applicants requested a height variance of 2 feet (19 feet rather than 17 feet) and a square footage variance of 345 square feet (total accessory structure square footage of 1,872 sq. ft. exceeding the dwelling's 1,527 sq. ft.) for a new steel three-bay garage at 18709 North Little John Lane (Union Township). Staff noted that plat restrictions limiting garages to three cars are enforceable via private civil action by neighbors, not by board zoning authority.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Motion to approve with the condition that the structure be for personal storage only failed by roll call vote (3 Yes: Billington, Fri, Matthew; 2 No: Rich/Fri, Hamilton, Knapp). *Disposition:* **Continued to the April 30 meeting** due to lack of four required votes.

4. Open Public Comment / Citizen Forum

(No general open public comment period was conducted at the conclusion of the meeting, as public input was integrated directly into individual public hearing items.)

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Director provided building permit statistics: 106 permits issued and 204 inspections completed through the end of February.
 - Noted Metropolitan Planning Organization (MPO) activities, including submission of the FY27-FY28 UPWP and notification of \$251,859.72 in planning distribution funds.
 - Noted 23 plan reviews completed year-to-date and 14 committee cases heard.
 - Announced upcoming conference attendance (IDEA conference, APA Indiana Spring Conference) and praised a local history presentation by board member Chris Smith.
 - **Emergency / Safety Notice:** 01:36:58 An administrative safety warning was announced regarding a tornado warning in Madison County, noting designated shelter areas in the building.
- **Next Meeting Notice:** April 30, 2026, at 6:00 PM in the same meeting room.
- **Adjournment:** The meeting was officially adjourned upon a motion at 01:38:54.

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